

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #10	CCRB Case #: 201609064	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 10/07/2016 10:40 AM, Tuesday, 10/11/2016 12:00 AM	Location of Incident: Shell Road & 86 Street	18 Mo. SOL 4/7/2018	Precinct: 60
Date/Time CV Reported Fri, 10/28/2016 12:24 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Fri, 10/28/2016 12:24 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Ananda Mirandamessner	06066	958938	060 PCT
2. POM Edward Raasch	14699	934082	060 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Ananda Mirandamessner	Abuse: Police Officer Ananda Mirandamessner stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Edward Raasch	Abuse: Police Officer Edward Raasch stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . POF Ananda Mirandamessner	Abuse: Police Officer Ananda Mirandamessner searched the vehicle in which § 87(2)(b) was an occupant.	C . Exonerated
D . POM Edward Raasch	Discourtesy: Police Officer Edward Raasch spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . POF Ananda Mirandamessner	Discourtesy: Police Officer Ananda Mirandamessner spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . POM Edward Raasch	Force: Police Officer Edward Raasch used physical force against § 87(2)(b)	F . Exonerated
G . POF Ananda Mirandamessner	Force: Police Officer Ananda Mirandamessner used physical force against § 87(2)(b)	G . Exonerated

Case Summary

On October 28, 2016, the CCRB received § 87(2)(b)'s notarized complaint on a CCRB walk-in form. On October 7, 2016 at 10:30 AM, Police Officer Ananda Mirandamessner and Police Officer Edward Raasch of the 60th Precinct stopped § 87(2)(b)'s vehicle at 86th Street and Shell Road in Brooklyn after witnessing him drive recklessly and attempt to strike a bicyclist with his vehicle (**Allegation A** and **Allegation B**). PO Mirandamessner and PO Raasch approached § 87(2)(b)'s vehicle and requested he place his vehicle in park. After § 87(2)(b) refused to comply with orders, PO Mirandamessner reached through the driver's window and turned the ignition off and placed the keys on the roof (**Allegation C**). While interacting with § 87(2)(b) during the vehicle stop, PO Mirandamessner and PO Raasch allegedly told § 87(2)(b) to "shut his fucking mouth" (**Allegation D** and **Allegation E**). § 87(2)(b) was issued a summons for § 87(2)(b). PO Mirandamessner and PO Raasch believed § 87(2)(b) to be an "Emotionally Disturbed Person" and called for an ambulance. Upon the arrival of the ambulance, PO Mirandamessner reached into § 87(2)(b)'s vehicle and retrieved his wallet from the front passenger seat to provide to the EMTs (**Allegation C**). § 87(2)(b) alleged that the officers "manhandled and pushed" him into the ambulance (**Allegation F** and **Allegation G**). While § 87(2)(b) was in the ambulance, PO Mirandamessner entered into and moved § 87(2)(b)'s vehicle to a legal parking spot (**Allegation C**). § 87(2)(b) was transported to § 87(2)(b).

There is no video footage of the incident.

Mediation, Civil and Criminal Histories

- § 87(2)(g) the case was deemed unsuitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On January 21, 2017, an inquiry was sent to the Office of the New York City Comptroller for any notice of claim filed by § 87(2)(b). The results of the inquiry will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (Board Review 2).
- Police Officer Ananda Mirandamessner has been a member of the NYPD for 1 year. PO Mirandamessner has two prior CCRB cases, with a total of two allegations made against her. None of the allegations were substantiated. § 87(2)(g)
- Police Officer Edward Raasch has been a member of the NYPD for 13 years. PO Raasch has one prior CCRB case with one allegation made against him, which was closed as Complainant Uncooperative. § 87(2)(g)

Potential Issues

- § 87(2)(b) mailed in a notarized CCRB walk-in form that did not provide a date of occurrence and included a partially illegible summary of his complaint (Board Review 5). Between November 1, 2016 and November 21, 2016, the undersigned investigator attempted to contact § 87(2)(b) ten times and mailed four please call letters. The undersigned was able to speak to § 87(2)(b) over the phone five of the ten times. While speaking to § 87(2)(b) over the phone, the undersigned struggled to converse with § 87(2)(b) as he was hard of hearing and tended to shout over the undersigned. The undersigned attempted on multiple occasions to obtain a phone statement from § 87(2)(b) § 87(2)(g).
§ 87(2)(b)
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§ 87(2)(b). The investigation was able to determine the date of occurrence and the identified subject officers from a § 87(2)(b) summons that was issued to § 87(2)(b) on October 7, 2016. § 87(2)(b) stated multiple times during phone conversations and letters that if the “police dropped his criminal case that he would drop his complaint against them.” The undersigned attempted to explain to § 87(2)(b) that the CCRB could not alter the disposition of his summons.

Subject Officer Identification

In § 87(2)(b)'s notarized walk-in form, in the police officer information section, he provided brief descriptions of the two subject officers. § 87(2)(b) listed a “Spanish female” from the 60th Precinct with the badge number of “6066” and “White” from the 60th Precinct with the badge number of “58928.” The § 87(2)(b) summons that was issued to § 87(2)(b) on October 7, 2016 at Shell Road & 86th Street was issued by PO Ananda Mirandamessner of the 60th Precinct. PO Mirandamessner's badge number is “06066.” According to the 60th Precinct's Roll Call for October 7, 2016, PO Mirandamessner was partnered with PO Raasch. PO Mirandamessner and PO Raasch both acknowledged during their interviews at the CCRB that they interacted with § 87(2)(b) on the day of incident.

Findings and Recommendations

Allegation A –Abuse of Authority: Police Officer Ananda Mirandamessner stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B- Abuse of Authority: Police Officer Edward Raasch stopped the vehicle in which § 87(2)(b) was an occupant.

In § 87(2)(b)'s notarized complaint, he testified that he was “pulled over for no reason” by officers after an altercation with a bicyclist (Board Review 5).

PO Mirandamessner testified that while sitting in a marked police van with her partner, PO Raasch, at a red traffic light she witnessed § 87(2)(b) about 18 feet ahead standing outside of his vehicle yelling at nearby pedestrians and a bicyclist. When the traffic light turned green, § 87(2)(b) returned to his vehicle and turned at a high rate of speed at the intersection. PO Mirandamessner described § 87(2)(b) as “driving recklessly” by switching lanes multiple times without using a signal. PO Mirandamessner believed § 87(2)(b) was attempting to chase the cyclist whom he had been yelling at. PO Mirandamessner and PO Raasch had a discussion about pulling § 87(2)(b) over to see if anything was wrong. PO Raasch put on the emergency lights and § 87(2)(b) pulled over after two blocks in the middle of the road. PO Mirandamessner stated that she intended to issue § 87(2)(b) a summons for reckless driving after witnessing the manner in which he was operating his vehicle (Board Review 6).

PO Raasch testified that while sitting in a marked police van with his partner, PO Mirandamessner, he noticed about 7 car lengths ahead § 87(2)(b) standing outside of his vehicle arguing with a bicyclist. PO Raasch heard § 87(2)(b) yell, “fuck you” and “why are you in my way? Why did you cut me off?” at the bicyclist. § 87(2)(b) approached the police van’s driver’s side and asked PO Raasch if he had “seen what the fucking cyclist had done?” PO Raasch told § 87(2)(b) that he was there to offer assistance but was unsure of what had transpired between § 87(2)(b) and the bicyclist. The traffic light turned green, and as § 87(2)(b) s vehicle was blocking traffic, motorists began to honk their horns. § 87(2)(b) said “fuck you” to PO Raasch and returned to his vehicle. § 87(2)(b) made a left turn at the intersection. The bicyclist § 87(2)(b) had been arguing with previously attempted to turn at the intersection as well. In the middle of making his turn at the intersection, § 87(2)(b) turned his vehicle towards the bicyclist, nearly hitting him. PO Raasch and PO Mirandamessner decided to pull § 87(2)(b) over after witnessing him nearly hit the cyclist. PO Raasch turned on the emergency lights and § 87(2)(b) pulled over after two blocks (Board Review 7).

New York State Vehicle and Traffic Law §1212 for Reckless Driving (Board Review 8) refers to motorists who “unreasonably interferes with the free and proper use of the highway, or unreasonably endangers users of the public highway.” According to *People v. Ingle*, the standard for stopping a motor vehicle is “reasonable suspicion” that a violation has occurred and the “stop not be a product of mere whim, caprice, or idle curiosity.” *People v. Ingle*, 36 N.Y.2d 413, 369 N.Y.S.2d 67, 330 N.E.2d 39 (1975) (Board Review 9).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** and **Allegation B** be closed as **Exonerated**.

Allegation C- Abuse of Authority: Police Officer Ananda Mirandamessner searched the vehicle in which § 87(2)(b) was an occupant.

In § 87(2)(b)'s notarized complaint, he testified that his vehicle was searched. § 87(2)(b) provided no additional context to this allegation (Board Review 5).

PO Raasch testified that after stopping § 87(2)(b)'s vehicle, § 87(2)(b) pulled his vehicle over to the right side of the road but kept his vehicle in the drive gear. PO Raasch asked § 87(2)(b) 3 times to place his vehicle in park. § 87(2)(b) did not comply with his requests and continued to argue about the reason for being pulled over. At that time, PO Mirandamessner reached through the driver's side window, turned § 87(2)(b)'s vehicle off, and placed the keys on the roof. PO Raasch feared § 87(2)(b) would have driven off, if the vehicle had not been turned off. PO Raasch stated that PO Mirandamessner asked § 87(2)(b) to move his vehicle to a legal parking spot before being transported to § 87(2)(b), and § 87(2)(b) refused. Therefore, PO Mirandamessner entered and moved § 87(2)(b)'s vehicle to a legal parking spot and returned the keys to § 87(2)(b) (Board Review 7).

PO Mirandamessner testified that after the ambulance had arrived at the scene she asked § 87(2)(b) for his information to provide to the EMTs. § 87(2)(b) told PO Mirandamessner that she had never returned his information after writing his summons. PO Mirandamessner replied that she had returned it to him. § 87(2)(b) stated he did not have his information. PO Mirandamessner noticed § 87(2)(b)'s wallet on the passenger front seat and opened the passenger side door and leaned in and retrieved § 87(2)(b)'s wallet to give to the EMTs. PO Mirandamessner stated that before being transported to § 87(2)(b), she asked § 87(2)(b) to move his vehicle from the right side of the road to a legal parking spot, and he refused. PO Mirandamessner entered into and moved § 87(2)(b)'s vehicle to a legal parking spot to avoid § 87(2)(b)'s vehicle from being towed and/or summonsed while at § 87(2)(b). After moving § 87(2)(b)'s vehicle, PO Mirandamessner returned the keys to § 87(2)(b) (Board Review 6).

§ 87(2)(g)
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In *People v. Diaz*, an officer is allowed to direct an individual to shut off the ignition of their vehicle to ensure their safety during a vehicle stop. *People v. Diaz*, 41 N.Y.2d 876, 393 N.Y.S.2d. 978, 362 N.E.2d 609 (1977) (Board Review 10). According to *Patrol Guide Procedure 218-13* (Board Review 11), an objective of a vehicle inventory search is to secure and protect the owner's property while in the custody of the police.

§ 87(2)(g)
§ 87(2)(g)

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[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED] Therefore, it is recommended that **Allegation C** be closed as **Exonerated**.

Allegation D- Discourtesy: Police Officer Edward Raasch spoke discourteously to § 87(2)(b)

Allegation E- Discourtesy: Police Officer Ananda Mirandamessner spoke discourteously to

§ 87(2)(b)

In § 87(2)(b)'s notarized complaint, he testified that the officers yelled at him to “shut his fucking mouth.” § 87(2)(b) did not specify which officer or if both officers used discourteous language towards him (Board Review 5).

PO Mirandamessner testified that § 87(2)(b)'s uncooperative behavior during the vehicle stop prompted her to issue § 87(2)(b) a criminal summons for § 87(2)(b), as opposed to a vehicle and traffic law violation summons for reckless driving. PO Mirandamessner deemed § 87(2)(b)'s behavior disorderly as he exited his vehicle multiple times during the vehicle stop, yelled continuously and exhibited erratic emotions. PO Mirandamessner denied that she told § 87(2)(b) to “shut his fucking mouth.” PO Mirandamessner did not hear PO Raasch tell § 87(2)(b) to “shut his fucking mouth.” PO Mirandamessner stated that neither she nor PO Raasch used any profanity towards § 87(2)(b) (Board Review 6).

PO Raasch testified that § 87(2)(b) cursed multiple times at him and PO Mirandamessner throughout the course of their interaction. PO Raasch deemed § 87(2)(b)'s behavior disorderly as he cursed, exited his vehicle multiple times during the vehicle stop, and flailed his arms. PO Raasch denied that he told § 87(2)(b) to “shut his fucking mouth.” PO Raasch did not hear PO Mirandamessner tell § 87(2)(b) to “shut his fucking mouth.” PO Raasch denied that he or PO Mirandamessner used any profanity towards § 87(2)(b) (Board Review 7).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** and **Allegation E** be closed as **Unsubstantiated**.

Allegation F- Force: Police Officer Edward Raasch used physical force against § 87(2)(b)

Allegation G- Force: Police Officer Ananda Mirandamessner used physical force against § 87(2)(b)

In § 87(2)(b)'s notarized complaint, he testified that he was “manhandled and pushed into the ambulance.” § 87(2)(b) provided no additional context to this allegation of force (Board Review 5).

PO Mirandamessner testified that § 87(2)(b)'s noncompliance, erratic emotions, and dangerous driving made her believe that he was an “Emotionally Disturbed Person” (EDP). PO Mirandamessner called for an ambulance to take § 87(2)(b) to the hospital for evaluation. Upon arrival of the ambulance, § 87(2)(b) physically entered the ambulance on his own without help or force from anyone. Upon arrival at § 87(2)(b), the two Emergency Medical Technicians (EMTs) tried to lay § 87(2)(b) down on a gurney, but § 87(2)(b) began to throw punches at the EMTs. One of the EMTs asked PO Mirandamessner and PO Raasch to hold down § 87(2)(b) so they could put retraining straps on him. PO Mirandamessner and PO Raasch held down § 87(2)(b)'s arms and legs so the EMTs could strap him to the gurney. § 87(2)(b) was then wheeled into § 87(2)(b) (Board Review 6).

PO Raasch testified that he called for an ambulance after conversing with Sergeant Alan Reardon over the radio regarding § 87(2)(b)'s stability and irrational behavior and determined § 87(2)(b) to be an Emotionally Disturbed Person (EDP). Upon arrival of the ambulance, § 87(2)(b) began to throw punches at PO Raasch, PO Mirandamessner, and the EMTs. § 87(2)(b) resisted being placed on a gurney. PO Raasch held down one of § 87(2)(b)'s arms and PO Mirandamessner held down one of § 87(2)(b)'s legs while the EMTs strapped him onto the gurney. § 87(2)(b) was wheeled out of the ambulance on the gurney upon arrival at § 87(2)(b). PO Raasch stated that no force was used to get § 87(2)(b) out of the ambulance or into § 87(2)(b) (Board Review 7).

§ 87(2)(g)

According to Patrol Guide Procedure 221-13 (Board Review 12), the safety of all persons involved is paramount in cases involving emotionally disturbed persons. If such person is dangerous to himself or others, necessary force may be used to prevent serious physical injury or death. Physical force will be used only to the extent necessary to restrain the subject until delivered to a hospital or detention facility.

§ 87(2)(g) [Redacted]
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[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
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[Redacted] It is recommended that **Allegation F** and **Allegation G** be closed as **Exonerated**.

Squad: 10

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date